

Constitution of India and Professional Ethics - Ultimate Study Notes

Overview and Learning Objectives

This comprehensive guide covers the foundational principles of the Indian Constitution, including federalism, separation of powers, fundamental rights, directive principles, and professional ethics. These notes integrate constitutional values with ethical principles essential for governance, research, and professional conduct. The material is designed to provide complete mastery of constitutional provisions, human rights frameworks, and professional responsibilities needed for academic excellence and practical application.

MODULE 1: FOUNDATIONAL CONSTITUTIONAL PRINCIPLES

Unit 1.1: The Indian Constitution - Introduction

1.1.1 Basic Facts and Timeline

Key Dates:

Event	Date
Preamble Adoption	26 November 1949
Constitution Enforcement	26 January 1950
Independence Act	15 August 1947
Supreme Court Establishment	1950

Important Characteristics:

- **Longest written constitution** in the world
- **Living document** - adapts through amendments and judicial interpretation
- Built on values from centuries of Indian society and freedom struggle
- Designed as instrument of "**social revolution**"

1.1.2 The Preamble - Soul of the Constitution

Opening Words: "We, the People of India"

Complete Text Analysis:

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a

[SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC] and to secure to all its citizens:

JUSTICE - social, economic and political

LIBERTY - of thought, expression, belief, faith and worship

EQUALITY - of status and of opportunity

FRATERNITY - assuring dignity of individual and unity and integrity of the Nation

Key Terms Explained:

Term	Meaning	Significance
Sovereign	Independent authority; no external control	Legislature has power to make laws within constitutional restrictions
Socialist	Democratic socialism (Added: 42nd Amendment, 1976)	Political-economic system ensuring social, economic, political justice
Secular	State neutral to all religions (Added: 42nd Amendment, 1976)	Equal respect for all religions; freedom of religious practice
Democratic	Government by the people (demos = people, karots = authority)	Universal adult franchise; elected representatives at all levels
Republic	Elected head of state (res publica = public commonwealth)	President elected for fixed term, not hereditary monarch

Functions of the Preamble:

1. Sets out objectives of Constituent Assembly
2. Key to understanding makers' minds (Supreme Court observation)
3. Embodies ideals and aspirations of Indian people
4. **Non-justiciable** - cannot be enforced in court like DPSPs
5. Cannot override specific constitutional provisions
6. Provides no substantive power to state organs
7. Removes ambiguity in constitutional interpretation

Unit 1.2: Federalism and Separation of Powers

1.2.1 Federalism - Division of Power

Nature of Indian Federalism:

- Described as "**Union of States**" (not "Federation of States")
- **Quasi-federal** system - federal with unitary bias
- Balance between strong central authority and regional autonomy

Power Distribution:

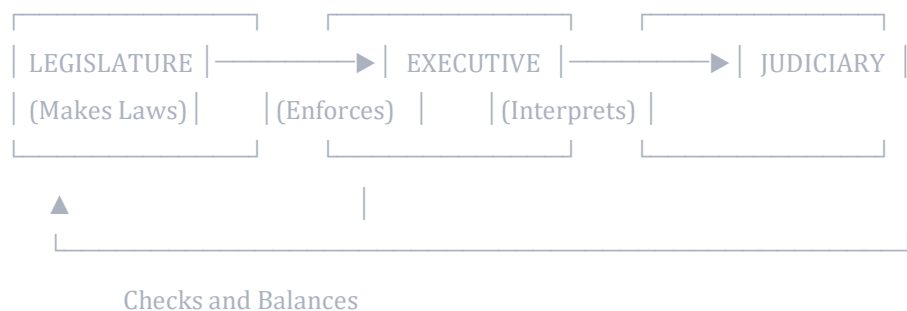
Government Level	Subject Areas	Examples
Central (Union)	National subjects	Defence, Foreign Affairs, Currency, Railways
State	Regional subjects	Police, Public Health, Agriculture, Local Government
Concurrent	Shared subjects	Education, Forests, Marriage, Adoption

Why Federalism Maintains Stability:

1. Prevents concentration of power in single entity
2. Respects diversity of regions while maintaining unity
3. Allows customized governance for local needs
4. Provides checks on central government overreach
5. Ensures continuity through distributed governance

1.2.2 Separation of Powers

The Three Organs of State:



Checks and Balances System:

Organ	Primary Function	Checks on Others
Legislature	Makes laws	Can impeach President; override ordinances; question executive
Executive	Implements laws	President can return bills; issue ordinances; appoint judges
Judiciary	Interprets laws	Judicial review; can declare laws unconstitutional; protect rights

Principle: Each organ must respect others and not encroach into their domain

Significance:

- Ensures **Rule of Law** - no one is above the law
- Prevents arbitrary rule and authoritarianism
- Maintains democratic stability
- Protects citizen rights from state abuse

Unit 1.3: Judicial Review

1.3.1 Concept and Authority

Definition: Judicial Review is the power of the Judiciary (specifically Supreme Court) to interpret laws and review actions of Legislature and Executive to ensure constitutional compliance.

Supreme Court as "Guardian of the Constitution"

Constitutional Basis:

- Article 13: Laws inconsistent with Fundamental Rights are void
- Article 32: Right to Constitutional Remedies
- Article 226: High Court writ jurisdiction

1.3.2 Importance and Functions

Key Functions:

1. **Protection of Fundamental Rights**
 - Prevents arbitrary and discriminatory state actions
 - Citizens can approach courts for remedy (Article 32)
 - Creates enforceable boundaries on state power
2. **Making Constitution a "Living Document"**
 - Through ingenious interpretations, Court "breathes life" into Constitution
 - Adapts constitutional provisions to modern needs

Examples of Judicial Interpretation:

Original Provision	Expanded Interpretation	Year	Impact
Article 21: Right to Life	Right to Privacy	2017	Protected personal autonomy and dignity
Article 21: Right to Life	Right to Livelihood	1985	Protected pavement dwellers from eviction
Article 21: Right to Life	Life with Human Dignity	1984	Prohibited forced labor, torture, humiliation
Article 19: Freedom of Speech	Right to Telephone Privacy	1997	Protected private conversations from tapping

3. **Checking Power**
 - Ensures government functions within constitutional limits
 - Preserves democratic values and constitutional morality
 - Prevents tyranny of majority

Landmark Case - Olga Tellis vs. Bombay Municipal Corporation (1985)

- **Issue:** Eviction of pavement dwellers
- **Ruling:** "Right to Life includes right to livelihood; depriving person of means to earn violates Article 21"
- **Impact:** Established that Constitution protects economic survival, not just biological existence

MODULE 2: FUNDAMENTAL RIGHTS, DUTIES, AND DIRECTIVE PRINCIPLES

Unit 2.1: Fundamental Rights (Part III)

2.1.1 Overview and Nature

Historical Context:

- Originally **7 Fundamental Rights** (1950)
- Currently **6 Fundamental Rights** (Right to Property removed by 44th Amendment, 1978)
- **Justiciable** - legally enforceable by courts

General Characteristics:

Feature	Description
Nature	Subject to reasonable restrictions (not absolute)
Suspension	Can be suspended during National Emergency
Amendment	Can be amended by Parliament
Remedy	Article 32 - Right to Constitutional Remedies ("heart and soul" of Constitution)
Application	Some apply to all persons; some only to citizens

2.1.2 Six Categories of Fundamental Rights

I. Right to Equality (Articles 14-18)

Article 14: Equality before law and equal protection of laws

- State cannot deny equality before law
- Equal protection = similar treatment in similar circumstances
- Foundation of inclusive society

Article 15: Prohibition of discrimination

- **Grounds protected:** Religion, race, caste, sex, place of birth
- **Clause (1):** State cannot discriminate
- **Clause (2):** No citizen can be denied access to:
 - Shops, public restaurants, hotels, entertainment places
 - Wells, tanks, bathing ghats, roads, public places
- **Clause (3):** Special provisions for women and children allowed
- **Clause (4):** Reservations for socially and educationally backward classes

Article 16: Equality of opportunity in public employment

- **Clause (1):** Equal opportunity for all citizens in state employment
- **Clause (2):** No discrimination on grounds of religion, race, caste, sex, descent, place of birth, residence
- **Clause (4):** Reservations for backward classes allowed

Article 17: Abolition of Untouchability

- Untouchability abolished in all forms
- Practice punishable by law
- **Transformative provision** ending historical humiliation
- **Supporting Legislation:** Prevention of Atrocities Act (14566 helpline for victims)

Article 18: Abolition of Titles

- No titles except military or academic distinctions
- Citizens cannot accept titles from foreign states
- Promotes equality by preventing artificial distinctions

II. Right to Freedom (Articles 19-22)

Article 19: Six Freedoms (for citizens only)

Freedom	Scope	Reasonable Restrictions
(a) Speech and Expression	Includes press freedom, telephone privacy	National security, public order, decency, morality, contempt of court, defamation
(b) Assembly	Peaceful assembly without arms	Public order, sovereignty and integrity of India
(c) Association/Union	Including cooperative societies	Public order, morality, sovereignty of India
(d) Movement	Throughout India	Interests of general public, scheduled tribes protection
(e) Residence	In any part of India	Same as movement
(g) Profession/Trade	Any lawful occupation	Public interest, professional qualifications

Note: Right to Property (former Article 19(f)) removed by 44th Amendment, 1978

Article 20: Protection in respect of conviction for offences

- **Ex post facto law:** No punishment for act not an offense when committed
- **Double jeopardy:** No punishment twice for same offense
- **Self-incrimination:** Accused cannot be compelled to be witness against himself

Article 21: Protection of life and personal liberty

"No person shall be deprived of his life or personal liberty except according to procedure established by law"

Judicial Expansions of Article 21:

Right Included	Case/Year	Significance
Right to Livelihood	Olga Tellis (1985)	Depriving means of work violates right to life
Right to Human Dignity	DK Basu (1997)	Life means more than animal existence
Right to Privacy	Puttaswamy (2017)	Protected personal autonomy and informational privacy
Right to Education	Unnikrishnan (1993)	Led to Article 21A
Right to Telephone Privacy	PUCL (1997)	Tapping violates both Article 21 and Article 19

Article 22: Protection against arrest and detention

- **Rights on arrest:**
 1. Must be informed of grounds of arrest
 2. Right to consult and be defended by legal practitioner
 3. Production before magistrate within 24 hours (excluding journey time)

Landmark Case - Joginder Kumar vs. State of U.P. (1994)

- Established that arrest power must balance individual rights with social responsibilities
- Cannot arrest merely because case is cognizable and non-bailable
- Must have reasonable suspicion and justification

III. Right Against Exploitation (Articles 23-24)

Article 23: Prohibition of traffic in human beings and forced labour

- Bans **human trafficking** and **begar** (forced labor)
- Prohibits debt bondage and slave-like exploitation
- **Significance:** Protects from private exploitation, not just state

Article 24: Prohibition of child labour

- Children **below 14 years** cannot be employed in:
 - Factories
 - Mines
 - Hazardous work

Constitutional Vision:

- Ends exploitation and ensures dignity of labor
- Recognizes that dignity is infringed by forced labor
- State intervention in civil society to prevent cruelty

IV. Right to Freedom of Religion (Articles 25-28)

Article 25: Freedom of conscience and religion

- **Subject to:** Public order, morality, health
- All persons equally entitled to:
 - Freedom of conscience
 - Right to profess, practice, propagate religion

Article 26: Freedom to manage religious affairs

- Religious groups can manage own affairs in matters of religion
- Subject to public order, morality, health

Article 27: Freedom from taxation for promotion of religion

- No compulsion to pay taxes for promotion of specific religion

Article 28: Freedom from religious instruction in educational institutions

- State-funded institutions cannot provide religious instruction

Significance: Promotes **secular** environment where diverse faiths coexist

V. Cultural and Educational Rights (Articles 29-30)

Purpose: Protect minorities and preserve cultural diversity

Article 29: Protection of interests of minorities

- **Clause (1):** Any section with distinct language, script, or culture has right to conserve it
- **Clause (2):** No discrimination in state-aided institutions on grounds of religion, race, caste, language

Article 30: Right of minorities to establish educational institutions

- Religious and linguistic minorities can establish and administer educational institutions
- State cannot discriminate when granting aid
- Protects minority educational autonomy

Significance:

- Ensures minorities feel secure in diverse India
- Prevents cultural identity from being overwhelmed by majority
- Promotes inclusive national development

VI. Right to Constitutional Remedies (Article 32)

"Heart and Soul of the Constitution" - Dr. B.R. Ambedkar

Features:

- Citizens can move Supreme Court for enforcement of Fundamental Rights
- Supreme Court has power to issue **writs**

- Makes rights a reality, not just promises

Five Types of Writs:

Writ	Literal Meaning	Purpose	Issued Against
Habeas Corpus	"To produce the body"	Protect personal liberty; release from illegal detention	Anyone detaining person
Mandamus	"We command"	Compel public authority to perform legal duty	Public officials, government bodies
Prohibition	"To forbid"	Prevent lower court from exceeding jurisdiction	Judicial/quasi-judicial bodies
Certiorari	"To be certified"	Quash order of lower court exceeding jurisdiction	Judicial/quasi-judicial bodies
Quo Warranto	"By what authority"	Prevent illegal usurpation of public office	Person holding public office

Important Notes:

- **Mandamus** not maintainable against President or Governors (constitutional immunity)
- **Habeas Corpus** available to both citizens and foreigners (Article 21 applies to all persons)
- **Injunction** is NOT a writ (common mistake)

2.1.3 Rights Available to All Persons vs. Citizens Only

Available to ALL PERSONS	Available to CITIZENS ONLY
Article 14: Equality before law	Article 15: Non-discrimination in specific matters
Article 20: Protection in criminal cases	Article 16: Equality in public employment
Article 21: Right to life and liberty	Article 19: Six freedoms
Article 22: Protection against arrest	Article 29-30: Cultural and educational rights
Articles 23-24: Against exploitation	
Articles 25-28: Freedom of religion	

Unit 2.2: Directive Principles of State Policy (Part IV)

2.2.1 Nature and Significance

Origin: Borrowed from Irish Constitution

Key Characteristics:

Feature	Description
Justiciability	Non-justiciable (cannot be enforced in court)
Legal Status	Not legally binding, but fundamental in governance (Article 37)
Purpose	Establish social and economic democracy

Feature	Description
Nature	Instructions/goals for government policy
Relationship with FR	Complementary, not contradictory

Article 37: "The provisions of this Part shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws."

2.2.2 Philosophy: Two Complementary Parts

Part III (Fundamental Rights) + Part IV (DPSPs) = Complete Constitutional Vision

FUNDAMENTAL RIGHTS (Part III)	DIRECTIVE PRINCIPLES (Part IV)
• Justiciable • Protect Individual • Negative Rights • Political Democracy • Shield against State • Immediately effective	• Non-justiciable • Guide Government • Positive Rights • Social-Economic - Democracy • Progressive goals

2.2.3 Important Directive Principles

Selected DPSPs:

Article	Directive Principle
Article 38	Secure social order for welfare of people
Article 39	Equal justice and free legal aid
Article 39A	Free legal aid to poor (added by 42nd Amendment)
Article 40	Organization of village panchayats
Article 41	Right to work, education, public assistance
Article 42	Just and humane conditions of work
Article 43	Living wage and decent standard of life
Article 44	Uniform Civil Code
Article 45	Free and compulsory education for children
Article 46	Promote educational and economic interests of SCs, STs
Article 47	Raise level of nutrition and standard of living
Article 48	Organization of agriculture and animal husbandry
Article 48A	Protection of environment, forests, wildlife
Article 51	Promotion of international peace and security

Note: Articles in bold are frequently tested

2.2.4 DPSPs vs Fundamental Rights

Comparative Analysis:

Aspect	Fundamental Rights	Directive Principles
Enforceability	Justiciable (court enforceable)	Non-justiciable
Nature	Negative (restrict state action)	Positive (direct state action)
Beneficiary	Individual citizens	Society as a whole
Democracy Type	Political democracy	Social-economic democracy
Implementation	Immediate	Progressive (depends on resources)
Amendment	More difficult	Easier
Court Role	Can declare laws void	Cannot enforce directly

Famous Statement: "While Fundamental Rights are legally enforceable, Directive Principles are essential guidelines for governance."

Unit 2.3: Fundamental Duties (Part IVA)

2.3.1 Introduction

Constitutional Provision: Article 51A

Historical Background:

- Added by **42nd Amendment Act, 1976** (during Emergency)
- Inspired by Constitution of **USSR (Russia)**
- Originally **10 duties** (1976)
- **11th duty added** by 86th Amendment Act, 2002

Current Status: 11 Fundamental Duties

2.3.2 Complete List of 11 Fundamental Duties

Article 51A: It shall be the duty of every citizen of India—

- | # | Fundamental Duty |
|-----|--|
| (a) | To abide by the Constitution and respect its ideals, institutions, National Flag and National Anthem |
| (b) | To cherish and follow noble ideals that inspired national struggle for freedom |
| (c) | To uphold and protect sovereignty, unity and integrity of India |
| (d) | To defend the country and render national service when called upon |

- | | |
|---|-------------------------|
| # | Fundamental Duty |
|---|-------------------------|
- (e) To promote harmony and spirit of common brotherhood transcending religious, linguistic, regional barriers; renounce practices derogatory to dignity of women
 - (f) To value and preserve rich heritage of composite culture
 - (g) To protect and improve natural environment (forests, lakes, rivers, wildlife); have compassion for living creatures
 - (h) To develop scientific temper, humanism, spirit of inquiry and reform
 - (i) To safeguard public property and abjure violence
 - (j) To strive towards excellence in all spheres of individual and collective activity
 - (k) **(Added 2002)** If parent/guardian, to provide opportunities for education to child/ward between 6-14 years

2.3.3 Nature and Enforcement

Key Characteristics:

Feature	Description
Applicability	Citizens only (not foreigners, not government)
Nature	Moral obligations, not legal obligations
Enforceability	Non-justiciable (cannot be enforced in court)
Binding	Not legally binding like rights
Punishment	No direct punishment for violation
Purpose	Make citizens responsible participants in democracy

Significance:

- Shape social life by promoting civic responsibility
- Balance rights with responsibilities
- Foster national unity and social harmony
- Encourage environmental protection and scientific temper

MODULE 3: CONSTITUTIONAL VALUES AND GOVERNANCE

Unit 3.1: Transformative Constitutionalism

3.1.1 Evolution of the Constitution

Concept: Constitution is not a static document but a "**living document**" that evolves

Foundations:

1. Values upheld by Indian society for centuries
2. Refined during freedom struggle
3. Designed as instrument of "**social revolution**"
4. Goal: Break away from historical hierarchies (caste, colonial rule)

Evolution Mechanisms:

CONSTITUTIONAL EVOLUTION
1. FORMAL AMENDMENTS (Article 368)
• 106 amendments till date
• Parliament's amendment power
2. JUDICIAL INTERPRETATION
• Supreme Court interpretation
• Reading new rights into existing articles
• Adapting to "spirit of the age"
3. CONSTITUTIONAL PRACTICE
• Conventions and customs
• Political evolution

3.1.2 Transformative Constitutionalism Defined

Scholarly Description: "Shift from a neutral state to one that actively intervenes to achieve social justice"

Key Features:

Traditional Approach	Transformative Approach
Formal equality (treat everyone same)	Substantive equality (level the playing field)
Neutral state	Active state intervention
Protection of status quo	Social transformation
Negative rights only	Positive and negative rights

Examples of Transformation:

1. **Reservations/Affirmative Action**
 - Article 15(4), 16(4): Special provisions for backward classes
 - Goes beyond formal equality to achieve substantive equality
 - Goal: Level playing field for historically marginalized

2. **Abolition of Untouchability (Article 17)**
 - Transformative provision ending historical humiliation
 - Punishable by law
 - State intervenes to reshape society
3. **Right to Education (Article 21A)**
 - Free and compulsory education for children 6-14 years
 - Added by 86th Amendment, 2002
 - Active state obligation, not just negative right

3.1.3 Social Justice and Equality

Constitutional Vision:

Social Justice Components:

SOCIAL JUSTICE	
1. LIBERATION FROM CONSTRAINTS	
• Social constraints (caste)	
• Natural constraints (poverty)	
2. NON-DISCRIMINATION	
• Caste, creed, gender, religion	
3. STATE INTERVENTION	
• Active measures for justice	
• Not just neutral treatment	

Two Types of Equality:

Formal Equality	Substantive Equality
Treating everyone exactly same	Treating unequals unequally to make them equal
Equal opportunity only	Equal opportunity + special provisions
Arithmetic equality	Proportional justice
Example: Same education for all	Example: Reservations for backward classes

Economic Justice:

- No discrimination based on economic status
- Wealth divided based on work done
- **Equal pay for equal work** (Article 39(d))
- Equal opportunities to earn living

Unit 3.2: Constitutional Morality

3.2.1 Concept

Definition: Constitutional morality involves cultivating a democratic citizen who respects the rule of law while limiting arbitrary power of government and empowering the individual.

Key Elements:

Element	Description
Rule of Law	No one above the law; law governs all
Limited Government	Government power restricted by Constitution
Individual Empowerment	Protection and promotion of individual dignity
Democratic Citizenship	Participation in democratic processes

3.2.2 Human Dignity

Constitutional Guarantee:

- Article 21 interpreted to mean more than "animal existence"
- Guarantees **life with human dignity**

Dignity Violations:

- Torture
- Humiliation
- Forced labour
- Degrading treatment
- Custodial violence

Preamble Connection: "Fraternity assuring the **dignity of the individual** and the unity and integrity of the nation"

Landmark Case - Bandhua Mukti Morcha vs. Union of India (1984)

- Article 21 guarantees right to life with human dignity
- Human dignity has many elements
- Dignity infringed if person's life, physical or mental welfare is harmed
- Torture, humiliation, forced labour all infringe dignity

3.2.3 Inclusive Governance

"We the People" Identity:

- Creates new, inclusive identity transcending caste and religious barriers
- Government belongs to everyone equally

- **Single citizenship** unifies disparate populations

Fraternity (Preamble):

- Creates bond among citizens
- Everyone "child of the same soil"
- Regardless of caste, gender, religion
- Essential for unity and integrity of nation

Unit 3.3: Dignity of Labour and Social Roles

3.3.1 Constitutional Provisions

Prohibition of Exploitation:

Article 23: Prohibition of "begar" (forced labour) and traffic in human beings

- Aims to abolish practices where individuals forced to work without pay or dignity
- State can intervene in civil society to stop cruelty

Right to Livelihood:

Olga Tellis vs. Bombay Municipal Corporation (1985):

"The sweep of the right to life conferred by Art 21 is wide and far-reaching. Life means something more than mere animal existence."

- Right to Life (Article 21) includes Right to Livelihood
- Depriving person of means of work violates right to life
- Pavement dwellers entitled to rehabilitation allowing livelihood

Economic Justice:

- Wealth distributed based on work done
- Equal pay for equal work (Article 39(d))
- No discrimination based on economic status
- Fair compensation for labour

3.3.2 Protection of Marginalized Communities

Constitutional Provisions:

Article	Protection
Article 17	Abolition of untouchability
Article 15(4)	Special provisions for advancement of backward classes
Article 16(4)	Reservations in public employment

Article

Protection

Article 15(2) No discrimination in access to public places

Article 46 Promotion of educational and economic interests of SCs, STs

Supporting Legislation:

- **Prevention of Atrocities Act**
- **14566 Helpline** for victims of caste-based crimes

Affirmative Action (Reservations):

- Ensures marginalized communities have representation
- Level the playing field for historically oppressed
- Supports inclusive national development

3.3.3 Contributions of Marginalized Communities

Democratization through Voting:

- Universal Adult Franchise empowered millions
- Previously relied on "caprices of others" for representation
- Participation deepened Indian democracy

Social Revolution:

- Leaders like Dr. B.R. Ambedkar
- Organizations like Bahishkrit Hitakarini Sabha
- Spread education and culture among downtrodden
- Constitutional vision of social revolution

Legal Contributions:

- Actively used Constitution to define rights
- Example: Olga Tellis case - pavement dwellers fought for right to livelihood
- Expanded interpretation of rights for all citizens

MODULE 4: GOVERNMENTAL STRUCTURE

Unit 4.1: Union Government

4.1.1 The President

Constitutional Position:

Feature	Details
Position	Head of State (not Head of Government)
Election	Elected by Electoral College
Term	5 years
Re-election	Any number of times
Minimum Age	35 years
Oath	Administered by Chief Justice of India

Electoral College Composition:

- Elected members of both Houses of Parliament
- Elected members of State Legislative Assemblies
- Elected members of Delhi and Puducherry Legislative Assemblies

Powers:

Category	Powers
Executive	Supreme Commander of Defence Forces; Appoints PM, Governors, Judges
Legislative	Summons/prorogues Parliament; can return bills; assent required for laws
Judicial	Grants pardons, reprieves, respites
Emergency	Can declare three types of emergencies

Impeachment:

- Carried out by Parliament
- For violation of Constitution
- Requires special majority

Vacancy:

- Vice-President acts as President
- Election held within 6 months

4.1.2 Parliament

Composition: Article 79 states Parliament consists of:

1. President
2. Lok Sabha (House of the People)
3. Rajya Sabha (Council of States)

Common Mistake: Parliament is NOT just Lok Sabha + Rajya Sabha; President is integral part

Comparative Table:

Feature	Lok Sabha	Rajya Sabha
Nature	Lower House, Popular House	Upper House, Permanent House
Maximum Strength	552 (530 states + 20 UTs + 2 Anglo-Indians)	250 (238 elected + 12 nominated)
Current Strength	543	245
Term	5 years (can be dissolved)	Permanent (1/3 retire every 2 years)
Election	Direct (by people)	Indirect (by State Legislative Assemblies)
Presiding Officer	Speaker	Vice-President (ex-officio Chairman)
Money Bill	Can be introduced only here	Can only recommend changes (within 14 days)
No-Confidence Motion	Can be moved	Cannot be moved
Representation	Population-based	States get equal/proportional seats

Powers of Parliament:

1. **Legislative:** Makes laws for entire country
2. **Financial:** Controls finances through budget, taxes
3. **Executive Control:** Questions, motions,

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committees 4. **Constituent:** Amends Constitution (Article 368) 5. **Judicial:** Impeachment of President, Judges

Parliamentary Form of Government:

- Executive responsible to Legislature
- Council of Ministers collectively responsible to Lok Sabha
- PM and Ministers must be members of Parliament

4.1.3 Governor

Constitutional Position:

Feature	Details
Position	Constitutional head of State Government
Appointment	By President of India
Term	5 years (holds office during President's pleasure)
Can be appointed to	One or more states simultaneously
Resignation	To President of India

Powers:

- Summons and dissolves State Legislative Assembly
- Appoints Chief Minister and Council of Ministers
- Can reserve Bill for President's consideration
- Issues ordinances when Legislature not in session

Unit 4.2: Legislature and Law-Making

4.2.1 Constitutional Amendment Process

Article 368: Parliament's power to amend Constitution

Three Types of Amendments:

Type	Requirement	Examples
Type 1: Simple Majority	Majority of present and voting	Creation/abolition of Legislative Councils
Type 2: Special Majority	2/3 of present + voting AND majority of total membership	Most amendments, Fundamental Rights
Type 3: Special Majority + State Ratification	Special majority + ratification by 1/2 of states	Federal amendments (Articles 54, 55, 73, 162, 241)

Process:

1. Bill can be introduced in either House
2. By any Member of Parliament (not just government)
3. Passed by required majority in both Houses
4. President's assent **mandatory** (cannot withhold)

4.2.2 Types of Bills

Money Bill:

- Can be introduced only in Lok Sabha
- Related to taxation, government expenditure, borrowing
- Rajya Sabha can only recommend (14 days)
- Lok Sabha decision final

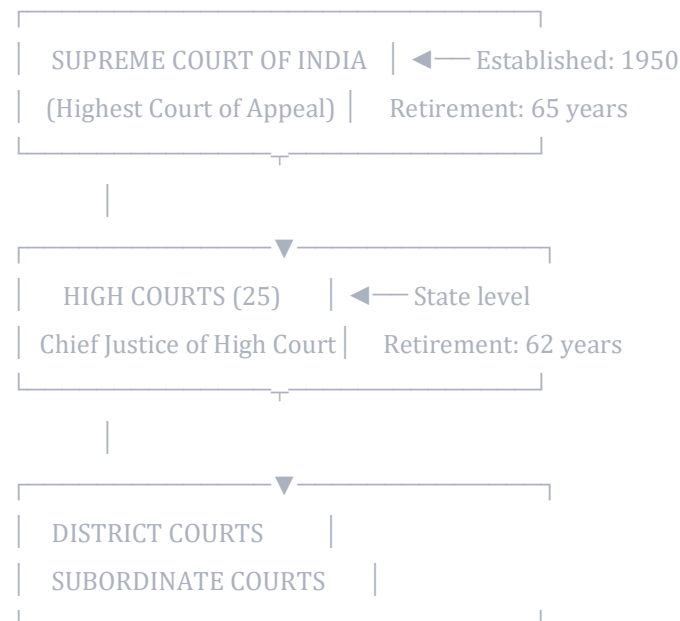
Ordinary Bill:

- Can be introduced in either House
- Requires passage by both Houses
- In case of deadlock, **joint sitting** presided by Speaker of Lok Sabha

Maximum Gap Between Sessions: 6 months

Unit 4.3: Judiciary

4.3.1 Structure and Hierarchy



4.3.2 Functions and Powers

Primary Responsibility: Interpreting laws (not making or executing)

Supreme Court Powers:

Power	Description
Judicial Review	Examine constitutionality of laws
Writ Jurisdiction	Article 32 - enforce Fundamental Rights
Advisory Jurisdiction	Advise President on questions of law
Court of Record	Decisions binding on all courts in India
Guardian of Constitution	Protects constitutional values

Binding Precedent:

- Supreme Court decisions binding on all courts in India
- High Court decisions binding on subordinate courts in that state

Appointment:

- Supreme Court judges appointed by President
 - Chief Justice of India administers oath to President
 - Ensures judicial independence
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Unit 4.4: Elections and Democracy

4.4.1 Election Commission of India

Constitutional Body: Established under Constitution

Responsibilities:

- Conduct elections to:
 - Parliament (Lok Sabha and Rajya Sabha)
 - State Legislatures
 - Office of President
 - Office of Vice-President

Note: Does NOT conduct elections to Panchayats and Municipalities (conducted by State Election Commission)

Powers:

1. **Model Code of Conduct:** Enforces ethical guidelines during elections
2. **Free and Fair Elections:** Ensures transparency
3. **Constitutional Autonomy:** Independent of executive control

4.4.2 Local Self-Government

Constitutional Amendments:

- **73rd Amendment Act:** Constitutionalized Panchayati Raj (rural local government)
- **74th Amendment Act:** Constitutionalized Municipalities (urban local government)

Features:

Aspect	Details
Elections Conducted by	State Election Commission
Minimum Age to Contest	21 years
Main Objective	Decentralization of power
Promotes	Grassroots democracy

Significance:

- Brings governance closer to people
- Empowers local communities
- Promotes participatory democracy

Unit 4.5: Emergency Provisions

4.5.1 Three Types of Emergencies

Type	Grounds	Effect	Article
National Emergency	War, external aggression, armed rebellion	Centre-State becomes unitary; FR can be suspended	352
State Emergency (President's Rule)	Failure of constitutional machinery in state	State governance by Centre; State Legislature suspended	356
Financial Emergency	Threat to financial stability of India	Centre can give directions to states on financial matters	360

National Emergency Effects:

- Federal structure becomes **unitary**
- Fundamental Rights (except Article 20-21) can be suspended
- Parliament can make laws on State subjects
- Centre can give directions to states

MODULE 5: HUMAN RIGHTS

Unit 5.1: Concept of Human Rights

5.1.1 Definition and Nature

Universal Declaration Definition:

"Rights inherent to all human beings, whatever our nationality, place of residence, sex, national or ethnic origin, colour, religion, language, or any other status. We are all equally entitled to our human rights without discrimination."

Article 1 - Universal Declaration (1948):

"All human beings are born free and equal in dignity and rights. They are endowed with reason and conscience and should act towards one another in a spirit of brotherhood."

Three Core Characteristics:

Characteristic	Meaning
Inalienable	Cannot be taken away; inherent to being human
Indivisible	Cannot deny a right because it's "less important"
Interdependent	All human rights part of complementary framework

5.1.2 Historical Development

Timeline:

1941 → Roosevelt's "Four Freedoms Speech" (US Congress)

- Freedom of speech
- Freedom of religion
- Freedom from want
- Freedom from fear

↓

1945 → End of World War II & Holocaust

↓

1948 → Universal Declaration of Human Rights (UDHR)

- 10 December 1948
- Common standard for all peoples and nations
- 30 Articles

↓

1966 → International Covenants (force: 1976)

- ICCPR - Civil and Political Rights
- ICESCR - Economic, Social, Cultural Rights

↓

INTERNATIONAL BILL OF HUMAN RIGHTS

(UDHR + ICCPR + ICESCR)

5.1.3 Universal Declaration - 30 Articles Summary

Key Articles:

Article	Right
1	Right to Equality
3	Right to Life, Liberty, Personal Security
4	Freedom from Slavery
5	Freedom from Torture and Degrading Treatment
7	Right to Equality before the Law
9	Freedom from Arbitrary Arrest and Exile
11	Right to be Considered Innocent until Proven Guilty
13	Right to Free Movement in and out of Country
18	Freedom of Belief and Religion
19	Freedom of Opinion and Information
21	Right to Participate in Government and Free Elections
23	Right to Desirable Work and Join Trade Unions
25	Right to Adequate Living Standard
26	Right to Education

5.1.4 International Covenants

ICCPR (International Covenant on Civil and Political Rights):

- Adopted: 16 December 1966
- Force: 23 March 1976
- Protects: Individual freedom from infringement by governments, organizations, individuals
- Ensures: Ability to participate in civil and political life without discrimination

ICESCR (International Covenant on Economic, Social and Cultural Rights):

- Adopted: 16 December 1966
 - Force: 3 January 1976
 - Rights covered:
 - Work
 - Fair and just conditions of work
 - Social security
 - Adequate food, clothing, housing
 - Health
 - Education
-

Unit 5.2: Human Rights in Indian Constitution

5.2.1 Integration into Fundamental Rights

Legal Definition (Protection of Human Rights Act, 1993):

"Human rights means the rights relating to life, liberty, equality and dignity of the individual guaranteed by the Constitution or embodied in the International Covenants and enforceable by courts in India."

Constitutional Integration:

UDHR Principle	Indian Constitutional Provision
Equality	Articles 14-18 (Right to Equality)
Liberty	Articles 19-22 (Right to Freedom)
Freedom from Exploitation	Articles 23-24 (Right against Exploitation)
Freedom of Religion	Articles 25-28 (Right to Freedom of Religion)
Cultural Rights	Articles 29-30 (Cultural and Educational Rights)
Remedy	Article 32 (Right to Constitutional Remedies)

5.2.2 Preamble and Human Rights

Preamble Objectives:

WE, THE PEOPLE OF INDIA secure to all citizens:

JUSTICE	
• Social, economic, political	
LIBERTY	
• Thought, expression, belief, faith, worship	
EQUALITY	
• Status and opportunity	
FRATERNITY	
• Dignity of individual	
• Unity and integrity of nation	

5.2.3 Human Rights Violations in India

Common Violations:

Category	Examples
Police/State Action	Custodial deaths, fake encounters, illegal detention, torture
Vulnerable Groups	Women, children, minorities, dalits
Economic	Bonded labour (despite 1976 legal abolition), child labour
Social	Untouchability practices, caste atrocities
Armed Forces	Excessive use of force in conflict areas

Statistics (Example - Bihar 2015):

- 6,542 complaints to Bihar Human Rights Commission
- One-third related to police, armed forces, or jail

Women and Children:

- Female foeticide and infanticide
- Child marriage despite legal prohibition
- Sexual assault
- Rape
- Immoral trafficking
- Workplace offences

Debt Bondage:

- Legally abolished 1976
- Remains prevalent due to weak enforcement

- Exploitative interlinking of credit and labor
- Severe power imbalances between lender and borrower

Religious Intolerance:

- Extremism and radicalization
 - Hate crimes and violence
 - Need for social cohesion programs
 - Intolerance, stigmatization, negative stereotyping
-

Unit 5.3: Human Rights Protection Mechanisms

5.3.1 National and State Human Rights Commissions

Establishment:

- **National Human Rights Commission (NHRC):** National level
- **State Human Rights Commission (SHRC):** State level

Functions:

- Receive and investigate complaints of human rights violations
- Inquire into petitions
- Intervene in court proceedings
- Review constitutional safeguards
- Recommend measures to government

Limitations:

- Recommendations not legally binding
- Often described as "toothless" (only advisory power)
- Cannot punish violators directly
- Can only advise, recommend, and "embarrass"

5.3.2 Human Rights Courts

Purpose: Provide speedy trial of offences arising from human rights violations

Jurisdiction:

- Try offences under Protection of Human Rights Act
- Cases can be filed under Section 2(d) of Protection of Human Rights Act read with Section 200 CrPC

Notable Features:

- Designated courts at district level

- Focus on expeditious justice
- Handle complaints against public servants for human rights violations

Landmark Case Example: Case: Complaint against Station House Officer for torture

- **Facts:** Complainant forcibly detained for 8 hours, tortured to sign papers and give cheque
- **Kept in illegal custody:** Violation of fundamental rights
- **Issue:** Whether private complaint maintainable against public servant
- **Argument:** Protection under Human Rights Act for public servants would be in peril if private complaints entertained

5.3.3 Recent Human Rights Cases (Examples)

1. Shiv Sagar Restaurant Case (Delhi)

- **Issue:** Restaurant denied entry to woman with street children
- **Grounds:** Children were "poor and dirty"
- **Finding:** Discriminatory behavior on socio-economic basis
- **Violation:** Human Rights and Fundamental Rights guaranteed by Constitution
- **Action:** Delhi Police registered case; fact-finding inquiry conducted

2. Political Rally Case

- **Issue:** People forced to sit in political rallies under scorching sun for 4-5 hours
- **Conditions:** No drinking water or basic facilities
- **Result:** Injuries and loss of lives
- **NHRC Action:** Took cognizance as violation of basic and fundamental human rights

3. Police Brutality on Human Rights Day

- **Issue:** Government doctor and others thrashed by police near restaurant
- **Problem:** Victims snubbed when trying to press case against inspector
- **Action:** SHRC intervened; called upon police not to ignore delinquent behavior

4. Bhanpur Landfill Site (Madhya Pradesh)

- **Issue:** Illegal dumping and burning of municipal waste
- **Effect:** Polluted water within 2km; affected residents' health
- **Findings:** Bacteria 2,400 times higher; cancer-causing metals present
- **MPHRC Action:** Showcause notices to multiple departments
- **NGT Order:** Restrict power to bore wells within 1.5km; paste warning notices

5. Bangladeshi Girls Case (Kerala)

- **Issue:** Four girls staying in government homes for 8 years
 - **Reason:** Denied permission to return to homeland
 - **Claim:** Would affect investigation in Malappuram case
 - **Action:** KSHRC member visited; investigating violation
-

MODULE 6: PROFESSIONAL ETHICS

Unit 6.1: Foundations of Ethics

6.1.1 Definition and Scope

Ethics Definition: Moral principles governing behavior in personal and professional life

Professional Ethics: Trust and responsibility in professional work; ensures:

- Accountability
- Transparency
- Public trust
- Legal compliance
- Social responsibility

6.1.2 Core Values of Professional Ethics

Core Value	Description
Integrity	Adherence to moral principles; honesty in professional actions
Accountability	Being answerable for one's actions and decisions
Transparency	Openness in operations; builds public trust
Confidentiality	Protecting client or organizational information
Social Responsibility	Acting in interest of society at large, not just clients

Why Professional Integrity Matters:

PROFESSIONAL INTEGRITY



1. Combats Corruption	
2. Strengthens Democratic Governance	
3. Ensures Legal Compliance	
4. Prevents Conflicts of Interest	
5. Builds Long-term Trust and Organizational Reputation	

6.1.3 Key Ethical Concepts

Conflict of Interest:

- Personal interest interferes with professional duty

- Example: Manager promotes relative over qualified candidates
- Ethical response: Recuse from decision-making

Whistleblowing:

- Reporting illegal or unethical practices
- Protects public interest
- Example: Employee reports unsafe working conditions despite fear of retaliation
- Ethical duty over organizational loyalty

Professional Negligence:

- Failure to exercise due care
- Not same as honest mistake
- Example: Engineer approving unsafe design without proper checks

Unit 6.2: Ethical Theories

6.2.1 Deontological Ethics (Immanuel Kant)

Also Known As: Duty-based ethics

Core Principle:

"Act according to duty, not inclination"

Key Features:

Aspect	Description
Focus	Duty and intention, not consequences
Basis	Moral rules and obligations
Famous Principle	Categorical Imperative: "Act only according to that maxim whereby you can at the same time will that it should become a universal law"
Example	Telling truth is duty, even if consequences are negative

Application:

- Professional codes of conduct
- Absolute ethical rules (e.g., no plagiarism, no data falsification)

6.2.2 Consequentialism (Utilitarianism)

Founders: Jeremy Bentham, John Stuart Mill

Core Principle:

"Greatest happiness of the greatest number"

Key Features:

Aspect	Description
Focus	Consequences and results
Basis	Utility - what produces most good
Judges	Actions based on outcomes, not intentions
Example	Software update inconveniences few but improves security for millions → release it

Application:

- Public policy decisions
- Cost-benefit analysis in engineering
- Risk assessment

6.2.3 Virtue Ethics (Aristotle)

Focus: Character of the person, not rules or consequences

Key Features:

Aspect	Description
Emphasis	Developing good character traits (virtues)
Examples of Virtues	Honesty, courage, compassion, justice, wisdom
Goal	Becoming a virtuous person
Application	Professional character development, leadership

6.2.4 Ethics of Care (Carol Gilligan)

Focus: Relationships and empathy

Key Features:

Aspect	Description
Emphasis	Relationships, care, empathy over abstract rules
Criticism	Traditional ethics too focused on justice and rules only
Approach	Context-dependent; considers specific relationships
Example	Caring for vulnerable populations in healthcare

Gilligan's Critique:

- Traditional ethics ignored women's perspectives
- Overemphasized justice and rules
- Undervalued care and compassion

Unit 6.3: Moral Development (Kohlberg's Theory)

6.3.1 Three Levels and Six Stages

Theory Basis: Moral development based on reasoning behind moral decisions

Complete Framework:

Level	Stage	Focus	Motivation
Pre-conventional	1: Obedience & Punishment	Avoid punishment	Fear
	2: Self-Interest & Rewards	Personal gain	What's in it for me?
Conventional	3: Good Boy–Good Girl	Social approval	Please others
	4: Law & Order	Law, authority, social order	Maintain social system
Post-conventional	5: Social Contract	Democratic principles, human rights	Greatest good
	6: Universal Ethics	Universal ethical principles	Conscience, justice

Detailed Stage Descriptions:

Pre-conventional Level (Childhood):

- **Stage 1:** Right and wrong determined by punishment
- **Stage 2:** Right = what benefits me; simple exchange

Conventional Level (Adolescence/Adult):

- **Stage 3:** Good person = meets social expectations; seeks approval
- **Stage 4:** Respect for authority and law; maintain social order

Post-conventional Level (Not all reach):

- **Stage 5:** Laws are social contracts; can be changed if unjust
- **Stage 6:** Self-chosen ethical principles; universal justice

Important Note: Not all individuals reach post-conventional level; based on universal moral principles

Unit 6.4: Research Ethics

6.4.1 Definition and Core Principles

Research Ethics: Moral principles guiding researchers to conduct work truthfully and responsibly

Core Principle - Beneficence:

- Maximize benefits for society
- Minimize harm
- Balance risk and benefit

6.4.2 Key Ethical Requirements

1. Informed Consent:

- Participants voluntarily agree after full information
- No coercion or deception
- Right to withdraw at any time

2. Confidentiality:

- Protect participants' personal information
- Data security and privacy

3. Anonymity:

- Participant identity cannot be identified
- Different from confidentiality

4. Data Privacy:

- Protection of personal information
- Secure storage and handling

6.4.3 Research Misconduct - Three Major Types

Comparison Table:

Misconduct	Definition	Examples	Prevention
Plagiarism	Using others' work without acknowledgment	Copying text, ideas, code without citation	Proper citation; originality checks
Fabrication	Making up data or results	Inventing experiment results; fake data	Peer review; replication studies
Falsification	Manipulating data or results	Changing data points; manipulating images	Data management protocols; audit trails

Additional Misconduct:

Selective Reporting:

- Publishing only positive results
- Hiding negative findings

- Distorts scientific record
- Prevention: Pre-registration of studies; publication of null results

Conflict of Interest:

- Personal interests influence research
- Example: Accepting gifts from participants; financial ties to industry
- Prevention: Disclosure requirements; ethics committee review

6.4.4 How Research Ethics Prevents Malpractice

Ethical Framework:

RESEARCH ETHICS

↓

1. CITATION REQUIREMENTS	
→ Prevents Plagiarism	
2. DATA INTEGRITY PROTOCOLS	
→ Prevents Falsification	
3. TRANSPARENCY STANDARDS	
→ Prevents Selective Reporting	
4. PEER REVIEW	
→ Quality control	
5. INSTITUTIONAL OVERSIGHT	
→ Ethics committees	

Unit 6.5: Professional Responsibilities

6.5.1 Duties to Society

Professionals' Ethical Duties Extend Beyond Employer:

1. Risk Assessment and Safety:

- Primary duty: Identify and reduce potential hazards
- Ensure public safety, not just increase profits
- Example: Engineer must assess structural integrity before approval

2. Refusing Unethical Requests:

- Duty to refuse if endangers lives or violates safety
- Cannot simply follow instructions if unethical
- Example: Refuse to use low-quality materials even if saves money

3. Whistleblowing:

- Duty to report illegal or unethical practices
- Protect public interest over organizational loyalty
- Report to appropriate authorities

Engineering Ethics Case Study:

Scenario: Engineer asked to use low-quality materials to reduce costs, affecting safety

Option	Ethical Analysis
Follow instructions	WRONG - Violates duty to public safety
Ignore safety concerns	WRONG - Professional negligence
Refuse and highlight risks	CORRECT - Fulfills ethical duty
Accept responsibility later	WRONG - Reactive, not preventative

6.5.2 Common Ethical Challenges

Challenge Matrix:

Challenge	Scenario	Ethical Response	Principle Violated if Ignored
Safety vs. Cost	Pressure to cut costs by compromising safety	Prioritize safety	Non-maleficence
IPR Violations	Temptation to use unlicensed software	Respect IPR; use licensed software	Integrity, Legal compliance
Data Manipulation	Pressure to manipulate results	Report accurate findings	Academic honesty, Transparency
Plagiarism	Deadline pressure to copy	Cite sources properly; use own work	Academic integrity
Gifts/Favors	Accepting gifts that influence judgment	Decline or disclose	Avoid conflict of interest

Unit 6.6: Computer Science Ethics

6.6.1 Scope

Computer Science Engineering Ethics: Ethical use of technology and computing systems

Key Areas:

- Software development
- Data privacy and security
- Artificial Intelligence
- Intellectual Property Rights
- Algorithmic fairness

6.6.2 Specific Ethical Issues

1. Plagiarism in Computer Science:

- Copying code without permission or acknowledgment
- Using open-source code without proper attribution
- Claiming others' algorithms as own

Ethical Response:

- Comment code sources
- Follow open-source licenses
- Acknowledge collaborators

2. Software Reliability and Security:

- Programs must be reliable, safe, and secure
- Not just fast or profitable
- Test thoroughly before deployment

3. Responsible AI:

- Requires transparency and accountability
- Avoid algorithmic bias (causes unfair outcomes)
- Example: Facial recognition bias against certain demographics

4. Intellectual Property Rights:

- Protects software, algorithms, digital creations
- Types applicable to CS:
 - **Copyright:** Literary, artistic, software works
 - **Patents:** New inventions, processes, algorithms
 - **Trademarks:** Brand identity, logos, names
 - **Trade Secrets:** Confidential business information

5. Data Misuse:

- Engineers must report misuse of user data
- Protect privacy and confidentiality
- Follow data protection regulations

Ethical Scenarios:

Scenario	Ethical Issue	Response
Install unlicensed software to save money	IPR violation	Purchase licensed software
Copy code from GitHub without attribution	Plagiarism	Provide proper attribution; follow license
Deploy AI with known bias	Algorithmic bias	Fix bias before deployment
Collect user data without consent	Privacy violation	Implement informed consent
Ignore security vulnerability to meet deadline	Negligence	Fix vulnerability; delay if necessary

Unit 6.7: Ethical Codes and Mechanisms

6.7.1 Institutional Mechanisms

1. Whistleblowing Mechanisms:

- Allow employees to report unethical practices without fear
- Confidential reporting channels
- Protection from retaliation
- Detect and stop wrongdoing early

2. Licensing and IPR:

- **Licensing of IPR:** Granting permission to use intellectual property under specific conditions
- Clarifies ownership and usage rights
- Prevents theft and disputes
- Example: Software licensing (proprietary vs. open-source)

Types of IP Protection:

Type	Protects	Duration	Registration
Copyright	Literary, artistic, software works	Life + 60 years	Automatic
Patent	New inventions, processes	20 years	Required
Trademark	Brand name, logo	10 years (renewable)	Required
Trade Secret	Confidential business info	Indefinite (if secret maintained)	Not applicable
Geographical Indication	Products linked to specific region	10 years (renewable)	Required

3. Internal Motivation:

- Ethical codes work best when they foster internal motivation
- Compliance strongest when driven by own moral values

- Not just fear of punishment or political influence

6.7.2 Professional Organizations

IEEE (Institute of Electrical and Electronics Engineers):

- Professional organization for engineers
- Publishes ethical codes and standards
- Promotes professional development

Engineering Code of Ethics - Core Principles:

1. Hold paramount safety, health, welfare of public
 2. Perform services only in areas of competence
 3. Issue public statements only in objective and truthful manner
 4. Act for each employer/client as faithful agents/trustees
 5. Avoid deceptive acts
 6. Conduct themselves honorably, responsibly, ethically, lawfully
-

Unit 6.8: Labour Relations and Rights

6.8.1 Collective Bargaining

Definition: Negotiation between employers and workers' representatives (usually unions) on working conditions, wages, benefits

Principle: Mutual negotiation and compromise

Purpose: Alternative to industrial disputes and strikes

Benefits:

- Peaceful resolution of conflicts
- Worker representation
- Improved working conditions
- Fair wages

Process:

Workers form/join Union

↓

Union represents workers

↓

Negotiation with Employers

↓

Agreement reached



Implementation & monitoring

6.8.2 Constitutional Protection of Labour

Key Constitutional Provisions:

Provision	Protection
Article 23	Prohibition of forced labour and human trafficking
Article 24	Prohibition of child labour in factories, hazardous work
Article 39	Equal pay for equal work
Article 42	Just and humane conditions of work
Article 43	Living wage for workers

MODULE 7: CONSTITUTION AND ETHICS - INTEGRATION

Unit 7.1: Constitutional Values and Ethics

7.1.1 Limiting Power

Constitution and Ethics Together:

Purpose: Limit power to prevent arbitrary and abusive actions

CONSTITUTIONAL SAFEGUARDS

- Separation of Powers
- Checks and Balances
- Fundamental Rights
- Judicial Review

+

ETHICAL PRINCIPLES

- Professional Integrity
- Accountability
- Transparency
- Social Responsibility

=	
LIMITED, ACCOUNTABLE	
GOVERNMENT	

7.1.2 Constitutional Democracy

Idea of "Limited Government":

- Central to constitutional democracy
- Opposite of absolute monarchy, totalitarianism, dictatorship
- Power limited by constitutional rules
- Rule of law, not rule of individuals

Checks on Concentration of Power:

- Federalism: Division between Centre and States
- Separation of Powers: Legislature, Executive, Judiciary
- Fundamental Rights: Limits on state action
- Judicial Review: Courts check government

Unit 7.2: Special Constitutional Provisions

7.2.1 Protection Against Arbitrary State Action

Article 20: Protection in Criminal Cases

Three Protections:

Protection	Description	Latin Term
Ex post facto law	No punishment for act not offense when committed	"After the fact"
Double Jeopardy	No person punished twice for same offense	<i>Nemo debet bis vexari</i>
Self-Incrimination	Accused cannot be compelled to witness against himself	<i>Nemo tenetur se ipsum accusare</i>

Important Clarifications:

- Double jeopardy ≠ trial in two courts (that's appeal)
- Double jeopardy = same offense, same facts
- Self-incrimination = forced testimony, not voluntary

Continue

09:29

confession

7.2.2 Secularism

Added to Preamble: 42nd Amendment, 1976

Meaning:

- State treats all religions equally
- No state religion
- Equal respect for all faiths
- NOT absence of religion (that's atheism)

Constitutional Provisions:

- Articles 25-28: Freedom of Religion
- Article 27: No compulsion to pay taxes for any particular religion
- Article 28: No religious instruction in state-funded institutions

MODULE 8: QUICK REVIEW TABLES

Table 8.1: Key Articles Summary

Article	Provision	Category
14	Equality before law	Right to Equality
15	Non-discrimination	Right to Equality
16	Equality in public employment	Right to Equality
17	Abolition of untouchability	Right to Equality
19	Six freedoms	Right to Freedom
20	Protection in criminal cases	Right to Freedom
21	Right to life and liberty	Right to Freedom
21A	Right to education	Right to Education
22	Protection against arrest	Right to Freedom
23	Prohibition of forced labour	Right against Exploitation
24	Prohibition of child labour	Right against Exploitation
25-28	Freedom of religion	Right to Freedom of Religion
29-30	Cultural and educational rights	Minority Rights
32	Right to constitutional remedies	Enforcement Mechanism
37	DPSPs fundamental in governance	DPSP
39A	Free legal aid	DPSP

Article	Provision	Category
44	Uniform Civil Code	DPSP
51A	Fundamental Duties	Duties

Table 8.2: Amendment Summary

Amendment Year	Provision
42nd	1976 Added "Socialist," "Secular," "Integrity"; added Fundamental Duties
44th	1978 Removed Right to Property from Fundamental Rights
73rd	1992 Constitutionalized Panchayati Raj
74th	1992 Constitutionalized Municipalities
86th	2002 Added Article 21A (Right to Education); 11th Fundamental Duty

Table 8.3: Constitutional Terms

Term	Meaning	Example
Justiciable	Enforceable in court	Fundamental Rights
Non-justiciable	Not enforceable in court	DPSPs, Fundamental Duties
Ex-officio	By virtue of office	Vice-President is ex-officio Chairman of Rajya Sabha
Quasi-federal	Federal with unitary bias	Indian system
Writ	Court order	Habeas Corpus, Mandamus

Table 8.4: Comparison Tables

Rights vs. Duties vs. DPSPs

Aspect	Fundamental Rights	Directive Principles	Fundamental Duties
Part	Part III	Part IV	Part IVA
Article	12-35	36-51	51A
Justiciable	Yes	No	No
Beneficiary	Individual	Society	Society
For	Citizens (mostly)	All	Citizens only
Added	1950	1950	1976

Lok Sabha vs. Rajya Sabha

Feature	Lok Sabha	Rajya Sabha
Members	543	245
Term	5 years	Permanent
Election	Direct	Indirect
Dissolution	Can be dissolved	Cannot
Money Bill	Originates here	Can recommend only

Feature	Lok Sabha	Rajya Sabha
Confidence	Can vote no-confidence	Cannot
Presiding Officer	Speaker	Vice-President

MODULE 9: TOP TESTABLE FACTS

9.1: Most Frequently Tested

CRITICAL DATES:

1. Preamble adopted: **26 November 1949**
2. Constitution enforced: **26 January 1950**
3. Supreme Court established: **1950**

NUMBERS TO REMEMBER:

- Originally **7** Fundamental Rights, now **6** (Property removed)
- Originally **10** Fundamental Duties (1976), now **11** (2002)
- Lok Sabha: **543** members (maximum 552)
- Rajya Sabha: **245** members (maximum 250)
- Rajya Sabha: 1/3 retire every **2 years**
- President term: **5 years**
- President minimum age: **35 years**
- Supreme Court judges retire: **65 years**
- High Court judges retire: **62 years**
- Panchayat/Municipality minimum age: **21 years**
- Child labour prohibited below: **14 years**
- Right to Education: **6-14 years**

KEY AMENDMENTS:

- 42nd (1976): Socialist, Secular, Fundamental Duties
- 44th (1978): Removed Right to Property
- 73rd (1992): Panchayati Raj
- 74th (1992): Municipalities
- 86th (2002): Right to Education, 11th Duty

WRITS:

1. Habeas Corpus
2. Mandamus
3. Prohibition
4. Certiorari
5. Quo Warranto

NOT DPSP:

- Freedom of Speech (it's Fundamental Right - Article 19)

NOT WRIT:

- Injunction (common trap)

9.2: Common Mistakes to Avoid

Common Mistake	Correct Answer
Parliament = Lok Sabha + Rajya Sabha	Parliament = President + Lok Sabha + Rajya Sabha
India is federal	India is quasi-federal
FR are absolute	FR are subject to reasonable restrictions
All FR for everyone	Some only for citizens (Articles 15, 16, 19, 29-30)
Preamble adopted 26 Jan 1950	Preamble adopted 26 Nov 1949
Fundamental Duties for all	Fundamental Duties for citizens only
DPSPs are enforceable	DPSPs are non-justiciable
Injunction is a writ	Injunction is NOT a writ
Freedom of speech is DPSP	Freedom of speech is Fundamental Right

9.3: Mnemonics and Memory Aids

Six Fundamental Rights (EFRECC):

- Equality (14-18)
- Freedom (19-22)
- Religion (25-28)
- Exploitation (Against) (23-24)
- Cultural and Educational (29-30)
- Constitutional Remedies (32)

Five Writs (HM PQC):

- Habeas Corpus
- Mandamus
- Prohibition
- Quo Warranto
- Certiorari

Preamble Objectives (JELF):

- Justice
- Equality
- Liberty
- Fraternity

Three Types of Justice (SEP):

- Social
- Economic
- Political

Research Misconduct (PFF):

- Plagiarism
 - Fabrication
 - Falsification
-

MODULE 10: PRACTICE QUESTIONS

10.1: Multiple Choice Questions (50 Questions)

Constitutional Basics:

1. The Preamble was adopted on:
 - A. 15 August 1947
 - B. 26 January 1950
 - **C. 26 November 1949 ✓**
 - D. 13 December 1946
2. India is described as a "Republic" means:
 - A. President is nominated
 - **B. Head of State is elected ✓**
 - C. King is head of State
 - D. Judiciary is supreme
3. Words "Socialist" and "Secular" added in:
 - A. 1950
 - **C. 1976 ✓**
 - D. 1985
4. Originally how many Fundamental Rights:
 - **D. Seven ✓**
5. Currently how many Fundamental Rights:
 - **B. Six ✓**

Rights and Duties:

6. Which FR was removed:
 - **C. Right to Property ✓**
7. FR can be suspended during:
 - **B. National Emergency ✓**
8. Fundamental Duties applicable to:
 - **C. Citizens only ✓**

9. How many Fundamental Duties currently:
- **C. 11 ✓**
10. Fundamental Duties added by:
- **B. 42nd Amendment Act, 1976 ✓**

Government Structure:

11. Vice-President is ex-officio Chairman of:
- **B. Rajya Sabha ✓**
12. Parliament consists of:
- **B. President, Lok Sabha and Rajya Sabha ✓**
13. One-third Rajya Sabha retires every:
- **C. 2 years ✓**
14. Governor can be appointed to:
- **B. Two or more states ✓**
15. Judiciary acts as guardian of:
- **C. Constitution ✓**

More Questions Available in Full Test Bank

10.2: Descriptive Questions (Sample Answers)

Q1: Discuss Federalism and Separation of Powers (6 marks)

Model Answer:

The Indian Constitution maintains stability through balanced power distribution:

Federalism (Division of Power):

- India is a "Union of States" with quasi-federal system
- Power shared between Central Government (defence, foreign affairs) and State Governments (police, health)
- Balances strong central authority with regional autonomy
- Provides continuity and stability through distributed governance

Separation of Powers:

- Constitution mandates "checks and balances" among three organs:
 - Legislature (makes laws)
 - Executive (enforces laws)
 - Judiciary (interprets laws)
- Each organ respects others; no encroachment
- Ensures Rule of Law - no one above law
- Prevents arbitrary rule and maintains democratic stability

[6/6 marks - covers both concepts with examples]

Q2: What is Judicial Review? Discuss its importance (6 marks)

Model Answer:

Meaning: Judicial Review is the power of the Judiciary, specifically Supreme Court, to interpret laws and review actions of Legislature and Executive. The Supreme Court acts as "Guardian of the Constitution," ensuring no law violates constitutional provisions.

Importance:

1. **Protection of Rights:** Protects Fundamental Rights from arbitrary state actions; citizens can approach courts for remedy (Article 32)
2. **Living Document:** Through ingenious interpretations, Supreme Court "breathes life" into Constitution. Examples:
 - Right to Life (Art 21) expanded to include Right to Privacy (2017)
 - Right to Livelihood (Olga Tellis, 1985)
 - Life with Human Dignity
3. **Checking Power:** Ensures government functions within constitutional limits, preserving democratic values and preventing tyranny of majority

[6/6 marks - definition + three importance points with examples]

FINAL CHEAT SHEET (1-Page Quick Review)

CRITICAL FACTS

Dates: Preamble 26 Nov 1949 | Enforced 26 Jan 1950 **Numbers:** 6 FR | 11 FD | 543 LS | 245 RS
Key Amendments: 42nd (1976) - Socialist, Secular, FD | 44th (1978) - Property removed | 86th (2002) - Education

FUNDAMENTAL RIGHTS (EFRECC)

14-18: Equality | 19-22: Freedom | 23-24: Exploitation | 25-28: Religion | 29-30: Cultural | 32: Remedies

WRITS (HM PQC)

Habeas Corpus | Mandamus | Prohibition | Quo Warranto | Certiorari

PREAMBLE (JELF)

Justice (Social, Economic, Political) | Equality | Liberty | Fraternity

KEY CASES

Olga Tellis (1985): Livelihood = Life | DK Basu (1997): Life = Dignity | Puttaswamy (2017): Privacy

ETHICS

Theories: Kant (Duty) | Bentham (Utility) | Gilligan (Care) | Aristotle (Virtue) **Misconduct:** Plagiarism | Fabrication | Falsification **Kohlberg:** Pre-conventional (2) | Conventional (2) | Post-conventional (2)

GOVERNMENT

President: 5 yrs | 35 age | Electoral College **Parliament:** President + LS + RS **Judges:** SC 65 | HC 62 **Local:** 73rd Panchayat | 74th Municipality | 21 age

REFERENCES

1. Constitution of India, 1950 (as amended)
2. Universal Declaration of Human Rights, 1948
3. Protection of Human Rights Act, 1993
4. Landmark Supreme Court Judgments:
 - Olga Tellis vs. Bombay Municipal Corporation (1985) 3 SCC 545
 - DK Basu vs. State of West Bengal AIR 1997 SC 610
 - PUCL vs. Union of India AIR 1997 SC 568
 - Bandhua Mukti Morcha vs. Union of India (1984) 3 SCC 161
 - Joginder Kumar vs. State of U.P. (1994) SCC 260
5. Course Materials: RV University, School of Computer Science & Engineering

END OF COMPREHENSIVE NOTES

Total Pages: Complete coverage of all modules Study Time Required: 15-20 hours for thorough understanding Revision Time: 3-4 hours using cheat sheet and tables